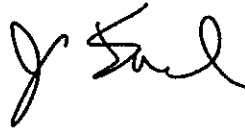


FIRST ENDORSEMENT

Executive Director, Civilian Complaint Review Board to Assistant Deputy Commissioner Nancy Slater, Department Advocate's Office, December 6, 2023. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2021-24295 against Police Officer Christopher Digioia, Tax Registry No. 946939. The case was conferenced on November 14, 2023, before Assistant Deputy Commissioner of Trials Vanessa Facio-Lince, who approved a Command Discipline Schedule B with the negotiated penalty of a forfeiture of Ten (10) vacation days. Charges and Specifications are dismissed for plea purposes.

A handwritten signature in black ink, appearing to read "J. S. L.", is written above a horizontal line.

Executive Director
New York City Civilian Complaint Review Board



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2021-24295
BOOK & PAGE NO. Page 1 of 4
PERSONNEL ORDER NO.

RANK/TITLE PO	SURNAME, DIGIOIA	FIRST CHRISTOPHE	M.I. J	COMMAND GUN VIOL SUPP DIV Z1
SHIELD NO. 16969	TAX REGISTRY NO. 946939	SOCIAL SECURITY NO.	DATE APPOINTED 07/08/2008	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED

TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1 . Police Officer Christopher DIGIOIA, on or about October 31, 2019, at approximately 2026, while assigned to 076 PCT and on duty, in the vicinity of Court Street and Butler Street, Kings County, was discourteous, in that he spoke discourteously to § 87(2)(b) without police necessity.	DISMISSED	B - COMMAND DISCIPLINE .00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule B Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 10.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2 . Police Officer Christopher DIGIOIA, on or about October 31, 2019, at approximately 2026, while assigned to 076 PCT and on duty, in the vicinity of Court Street and Butler Street, Kings County, abused his authority as a member of the New York City Police Department, in that he interfered with § 87(2)(b) use of a recording device without police necessity.	DISMISSED	
3 . Police Officer Christopher DIGIOIA, on or about October 31, 2019, at approximately 2026, while assigned to 076 PCT and on duty, in the vicinity of Court Street and Butler Street, Kings County, was discourteous, in that he	DISMISSED	


FIRST DEPUTY COMMISSIONER

1/5/24
DATE

POLICE COMMISSIONER'S APPROVAL

- ☒ Approved
☐ Disapproved
☐ Other Action (Describe)


POLICE COMMISSIONER

1/16/24
DATE



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2021-24295
BOOK & PAGE NO. Page 2 of 4
PERSONNEL ORDER NO.

RANK/TITLE PO	SURNAME, DIGIOIA	FIRST CHRISTOPHE	M.I. J	COMMAND GUN VIOL SUPP DIV Z1
SHIELD NO. 16969	TAX REGISTRY NO. 946939	SOCIAL SECURITY NO.	DATE APPOINTED 07/08/2008	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED

TRIAL COMMISSIONER	
SPECIFICATION	DISPOSITION RECOMMENDED PENALTY PLEA [X] TRIAL []
was discourteous toward § 87(2)(b) without police necessity.	
4 . Police Officer Christopher DIGIOIA, on or about October 31, 2019, at approximately 2026, while assigned to 076 PCT and on duty, in the vicinity of Court Street and Butler Street, Kings County, was discourteous, in that he was discourteous toward § 87(2)(b) without police necessity.	DISMISSED
5 . Police Officer Christopher DIGIOIA, on or about October 31, 2019, at approximately 2026, while assigned to 076 PCT and on duty, in the vicinity of Court Street and Butler Street, Kings County, was discourteous, in that he was discourteous toward § 87(2)(b) without police necessity.	DISMISSED
6 . Police Officer Christopher DIGIOIA, on or about October 31, 2019, at approximately 2026, while assigned to 076 PCT and on duty, in the vicinity of Court Street and Butler Street, Kings County, was discourteous, in that he was discourteous toward § 87(2)(b) without police necessity.	DISMISSED
7 . Police Officer Christopher DIGIOIA, on or about October 31, 2019, at approximately 2026, while assigned to 076 PCT and on duty, in the vicinity of Court Street and Butler Street, Kings County, was discourteous, in that he	DISMISSED

DC [Signature]
FIRST DEPUTY COMMISSIONER

1/5/24
DATE

POLICE COMMISSIONER'S APPROVAL

- ☒ Approved
☐ Disapproved
☐ Other Action (Describe)

Edward A. Cab...
POLICE COMMISSIONER
1/16/24
DATE

**DISPOSITION OF CHARGES**

PD 468-142(Rev. 8-89)-2

CASE NO. 2021-24295
BOOK & PAGE NO. Page 3 of 4
PERSONNEL ORDER NO.

RANK/TITLE PO	SURNAME, DIGIOIA	FIRST CHRISTOPHE	M.I. J	COMMAND GUN VIOL SUPP DIV Z1
SHIELD NO. 16969	TAX REGISTRY NO. 946939	SOCIAL SECURITY NO.	DATE APPOINTED 07/08/2008	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
was discourteous toward § 87(2)(b) without police necessity.		
8 . Police Officer Christopher DIGIOIA, on or about October 31, 2019, at approximately 2026, while assigned to 076 PCT and on duty, in the vicinity of Court Street and Butler Street, Kings County, was offensive toward § 87(2)(b)	DISMISSED	
9 . Police Officer Christopher DIGIOIA, on or about October 31, 2019, at approximately 2026, while assigned to 076 PCT and on duty, in the vicinity of Court Street and Butler Street, Kings County, was offensive toward § 87(2)(b)	DISMISSED	
10 . Police Officer Christopher DIGIOIA, on or about October 31, 2019, at approximately 2026, while assigned to 076 PCT and on duty, in the vicinity of Court Street and Butler Street, Kings County, was offensive toward § 87(2)(b)	DISMISSED	
11 . Police Officer Christopher DIGIOIA, on or about October 31, 2019, at approximately 2026, while assigned to 076 PCT and on duty, in the vicinity of Court Street and Butler Street, Kings County, was offensive toward § 87(2)(b)	DISMISSED	


FIRST DEPUTY COMMISSIONER

1/15/24
DATE

POLICE COMMISSIONER'S APPROVAL

- ☒ Approved
- ☐ Disapproved
- ☐ Other Action (Describe)


POLICE COMMISSIONER

1/16/24
DATE



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2021-24295
BOOK & PAGE NO. Page 4 of 4
PERSONNEL ORDER NO.

RANK/TITLE PO	SURNAME, DIGIOIA	FIRST CHRISTOPHE	M.I. J	COMMAND GUN VIOL SUPP DIV Z1
SHIELD NO. 16969	TAX REGISTRY NO. 946939	SOCIAL SECURITY NO.	DATE APPOINTED 07/08/2008	

RANK/NAME OF COMPLAINANT	COMMAND
--------------------------	---------

DATE OF CHARGES	DATE TRIAL COMMENCED	DATE TRIAL CONCLUDED
-----------------	----------------------	----------------------

TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
§ 87(2)(b) 12 . Police Officer Christopher DIGIOIA, on or about October 31, 2019, at approximately 2026, while assigned to 076 PCT and on duty, in the vicinity of Court Street and Butler Street, Kings County, was offensive toward § 87(2)(b)	DISMISSED	

DC Burtina 1/5/24
FIRST DEPUTY COMMISSIONER DATE

POLICE COMMISSIONER'S APPROVAL

- ☒ Approved
☐ Disapproved
☐ Other Action (Describe)

Edward A. Cab... 1/16/24
POLICE COMMISSIONER DATE

THIRD ENDORSEMENT

First Deputy Commissioner to Police Commissioner January 4, 2024. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 2021-24295 against Police Officer Christopher Digioia, Tax #946939, with the recommendation that the Charges and Specifications against Police Officer Digioia be dismissed and that Police Officer Digioia receive a Schedule "B" Command Discipline and forfeit ten (10) vacation days. Assistant Deputy Commissioner, Trials Vanessa Facio-Lince reviewed this case and made a favorable recommendation pertaining to the proposed settlement; I do not concur.

While the First Deputy Commissioner agrees that the negotiated penalty consisting of the dismissal of Charges and Specifications in lieu of a Schedule "B" Command Discipline, with the forfeiture of ten (10) vacation days, is appropriate in this matter, more specificity must be provided regarding each specification. Particularly, with respect to Specification 2 (interfering with a recording device), No Disciplinary Action is warranted.

According to Administrative Guide No. 304-27 (When a Member of the Service Encounters an Individual Observing, Photographing, and/or Recording Police Activity), "Individuals have a right to lawfully observe and/or record police activity including, but not limited to detentions, searches, arrests or uses of force." While the Department respects an individual's right to lawfully observe and record police activity, an officer should retain some discretion when the individual attempting to record police activity is the individual being detained. The individual in this matter attempted to take out his phone while he was being detained for a "show-up" as a suspect regarding a recent robbery of a cell phone. Although Administrative Guide No. 304-27 does not specifically distinguish between an observer not being subjected to police activity and an individual being held in police custody, it is reasonable to assume that the individual's right record police activity, while being detained, may be subject to reasonable restrictions, particularly while a "show-up" is being conducted.

Even if this right to record extends to the individual being detained in this matter, Administrative Guide No. 304-27 further states "this right to observe and/or record police action can be limited for reasons such as the safety of officers or other members of the public, or when a violation of law is committed by the individual(s) who are observing/recording. Although CCRB discredits Police Officer Digioia's safety concern, he testified that "when in the middle of an investigation, officers do not want civilians to call more people to the scene and create a larger crowd." Police Officer Digioia, along with several officers from his command, were dealing with a hectic situation on Halloween night, and attempting to control numerous individuals who were believed to have just committed a robbery. Moreover, a "show-up" was being conducted, and it is reasonable to potentially limit a suspected perpetrator from recording the victim of a crime.

Lastly, there are no facts to indicate that Police Officer Digioia knew or should have known that the individual was attempting to record police activities. In this case, the individual was merely informed to put his phone away, and stand against the wall, after removing his cell phone from his pocket.

Therefore, the First Deputy Commissioner recommends that Police Officer Digioia's Charges and Specifications be dismissed and that Police Officer Digioia receive a Schedule "B" Command Discipline with the forfeiture of ten (10) vacation days, with respect to Specifications 1, 3, 4, 5, 6, 7, 8, 9, 10, 11 and 12. Furthermore, Police Officer Digioia should receive No Disciplinary Action with respect to Specification 2.

RECOMMEND APPROVAL.

TIK/jpc

DC *Brubaker*

Tania I. Kinsella
FIRST DEPUTY COMMISSIONER

APPROVED

JAN 16 2024
Edward A. Caban
EDWARD A. CABAN
POLICE COMMISSIONER